

Recall & Removal

The constitutional ways a constitutional officer leaves before their term ends. Different officers, different thresholds, different deciders — but one rule applies to every single one of them.

§2.6, §2.13, §3.2, §3.5, §7.5, §7.9, §4.3.a, §9.9

WHO REMOVES WHOM — AND HOW

OFFICER	MECHANISM	THRESHOLD	DECIDED BY
Civic Consul	Constructive vote of no confidence — names a successor in the same motion	Absolute majority	Assembly alone §2.6
Legat Consul	Legislative track, or Senate-referred popular track	2/3 both chambers or 60% referendum	Legislature or electorate §2.13
SC Justice	For-cause only — constitutional breach, demonstrated permanent incapacity, or serious misconduct	2/3 both chambers	Legislature, concurrent vote §4.3.a
Inferior Court Judge	Two for-cause tracks: legislative removal or judicial discipline under SC oversight	2/3 both chambers (legislative track)	Legislature or judicial discipline §4.2
Monitor Generals & independent officers	Monitor Generals: initiated by the branch they do not audit; filing suspends authority (pay, benefits, term continue). Other officers: SC reviews category only, not facts	Monitor Generals: national referendum, 60% of votes cast with 55% participation. Other officers: SC confirms grounds (14 days) → 2/3 both chambers	Monitor Generals: the public. Other officers: Legislature, SC gatekeeps §9.9
LC domain officers	LC dismissal or Senate removal with published grounds	LC dismissal at any time; Senate majority of full seated membership	LC or Senate §2.4.a
Assembly / Senate Member	Expulsion by the member's own chamber	2/3 own chamber	Their own chamber §3.2 · §3.5
Assembly / Senate Member	State recall — must be a political process; cannot violate this Constitution	State-defined	State legislature or voters §3.2 · §3.5

\$7.9

The one rule that applies to every row above: expulsion, recall, and removal under any provision of this Constitution are civil and political processes. None of them constitute a criminal or civil legal proceeding, and none of them protect the removed officer from criminal prosecution or civil liability for the underlying conduct. A removed officer can still be charged. Constitutional accountability and criminal accountability run on separate tracks — always.

TWO DESIGN DETAILS WORTH KNOWING

The Early Departure Clause

A member who resigns, is expelled, or is recalled at any point during a term is deemed to have **served that full term** for cooling-off purposes. Closes the obvious bypass — leaving early no longer resets the consecutive-term clock. Applies identically to Assembly members and senators.

The Election Blackout

SC justice removal and the §9.9 track for other independent officers require prior SC review for a removal vote within 180 days of a major national election. The Monitor General referendum follows its separate §9.9 deadlines.

NUMBERS WORTH REMEMBERING

Absolute majority

of the full seated Assembly removes the CC while electing a successor. The caretaker Acting CC under §2.6.a is not subject to §2.6 removal.

14

days for SC category review for other independent officers. A majority of justices may request an NRS-published extension within that period; silence without a timely extension lapses the proceeding for the session (§9.9).

6 mo

cooldown after a failed §9.9 removal attempt for non-Monitor officers. For a Monitor General, a failed referendum bars the same grounds for the remainder of that term.